

Absolute Metaphors, Perfect Memes, and the LLMorphism Problem: Two Layers of Legal Genealogy

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Abstract

Memetic analysis of legal language has established that Latin maxims survive across centuries through specific evolutionary advantages: linguistic immutability, cognitive compression, and costly signaling. This paper argues that this account, while accurate, is incomplete. It identifies a deeper layer of legal genealogy that memetic analysis cannot reach on its own: the level of absolute metaphors in the sense proposed by Hans Blumenberg, that is, pre-conceptual images that resist terminological reduction and orient legal thought before any argument begins. I propose that Latin maxims are not merely perfect memes. They are absolute metaphors that crystallized before terminologization could complete, and their irreducibility derives from that arrest, not from conservatism or professional ritual. This framework is developed in explicit opposition to structuralist readings: absolute metaphors define what legal concepts are possible in a given environment, not which concept wins. The selection mechanism remains Darwinian. The second empirical case developed here is the LLMorphism construct proposed by Capraro (2025): the tendency to reinterpret human cognition through categories derived from large language models. I argue that LLMorphism is a candidate absolute metaphor currently undergoing memetic fixation, with measurable fitness advantages in contemporary institutional environments. The convergence of both cases suggests that the production of absolute metaphors is not a historical curiosity but a structural property of legal language under conditions of high-fidelity, low-variation transmission. The paper concludes with implications for the Ancestral Borrowing Analysis Network (ABAN) methodology and the Constitutional Lock-in Index (CLI): terminal nodes in genealogical trees are not data gaps but positive indicators of absolute metaphors with high institutional inertia.

*Keywords:** absolute metaphors, legal memes, Latin maxims, LLMorphism, extended phenotype theory, memetic genealogy, Blumenberg, ABAN, Constitutional Lock-in Index, legal evolution

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Epistemological Positioning Declaration

This paper operates within the Lakatosian framework developed across the author's research programme on law as extended phenotype. Popper (1959) provides the demarcation criterion: the hypotheses advanced here are falsifiable and several are stated with explicit test conditions. Kuhn (1962) is the object of study, not the methodology: the disciplinary resistance that evolutionary approaches encounter in legal theory is itself a datum explicable within the programme. Lakatos (1978) provides the architecture: the hard core consists of the proposition that legal norms are cultural replicators subject to selection; the protective belt includes the specific claims about absolute metaphors, terminal ABAN nodes, and LLMorphism fitness. Hull (1988) and Campbell (1974) ground the application of evolutionary epistemology to cultural transmission.

The Problem This Paper Addresses

Genealogical analysis of legal concepts traces ancestry through citations, textual similarity, and temporal sequencing. The Ancestral Borrowing Analysis Network (ABAN) methodology, implemented in the RootFinder tool, maps these lineages with documented fidelity of approximately 76% when validated against historical scholarship (Lerer 2025). Applied to corporate criminal liability regimes, to compliance frameworks, and to constitutional doctrine, ABAN produces genealogical trees that reveal memetic lineages across jurisdictions and centuries.

These trees have a systematic property that the methodology does not yet explain: they have terminal nodes. Every genealogical tree arrives at a point where the concept has no traceable parent. The standard interpretation is methodological: the documentary record ends, the database coverage fails, or the concept was simply invented by a named author at a particular date. This paper argues that a distinct class of terminal nodes has a different explanation. When a legal concept reaches a terminal node and resists paraphrase without semantic loss, and when it has persisted across divergent legal traditions without mutation, the terminal node is not a failure of documentation. It marks the presence of an absolute metaphor in the sense that

Blumenberg (1960) proposed: a pre-conceptual image that cannot be dissolved into propositional form because it answers questions that no proposition can formulate.

The practical stakes are not merely theoretical. If terminal ABAN nodes can be classified as either documentary gaps or absolute metaphors, the CLI gains a new dimension. Systems with high concentrations of absolute metaphors at their foundational level face a form of lock-in that normative rigidity alone does not capture. The reform is blocked not only by amendment thresholds or judicial veto but by the unavailability of a competing image that could displace the founding metaphor.

Blumenberg's Distinction and Its Limits

Blumenberg (1960) introduces metaphorology as the study of metaphors that resist terminologization. His starting point is the Cartesian program: philosophy should dissolve all figurative speech into clear and distinct concepts, replacing images with definitions. On this account, metaphors are transitional devices, scaffolding that thought uses until the building can stand on its own. Residual metaphors are those that have not yet been replaced; the program is to replace them.

Blumenberg's intervention is to identify a class of metaphors for which that program fails constitutively, not contingently. These are absolute metaphors: images that carry answers to questions that no propositional system can even formulate. The metaphor of light for truth is his paradigm case. One can define truth in a dozen ways. None of the definitions captures what it means to say that truth illuminates, or that error leaves one in the dark. The image precedes and exceeds every definition derived from it. Removing the metaphor does not leave a purer concept behind. It leaves a gap where orientation used to be.

Three properties follow from this analysis. First, absolute metaphors are irreducible: translation into propositional form produces loss, not equivalence. Second, they have histories: one absolute metaphor can be displaced by another, but not by a concept. The transition from light to mirror as the dominant metaphor for knowledge in early modernity is a history of competing images, not of images giving way to definitions. Third, they define what Blumenberg calls the subsoil of thought: the pre-systematic orientations within which conceptual systems form and from which they continuously draw.

The Instrumental Value of Metaphors: Blumenberg's Pragmatic Claim

Blumenberg's argument goes beyond identifying irreducibility. It makes a positive pragmatic claim about what absolute metaphors do that concepts cannot. In the introduction to *Paradigms for a Metaphorology*, he writes that the truth of absolute metaphors is a *vérité à faire*: a practical truth that "by providing a point of orientation, determines a particular attitude or conduct." Absolute metaphors "give structure to a world, representing the nonexperienceable, nonapprehensible totality of the real." They answer questions of a presystematic nature whose "intentional fullness provoked the metaphors, as it were."

This is not merely a claim about the limits of conceptualization. It is a positive claim about the cognitive function that metaphors perform and that concepts structurally cannot. A concept specifies; a metaphor orients. A concept delimits the extension of a predicate; a metaphor organizes an entire field of perception and judgment before any predicate is applied. Blumenberg's paradigm case of the "mighty truth," traced through Aristotle, the Stoics, Vico, and Kepler, shows how the metaphor of truth as a self-asserting force structured the epistemic dispositions of entire epochs, determining attitudes of confidence or resignation toward knowledge acquisition, long before any propositional theory of truth was formulated. The metaphor did not illustrate a prior doctrine. It made a doctrine possible.

For legal theory, the consequence is direct. When a court invokes *nemo iudex in causa sua*, it is not applying a propositional rule that could have been stated another way. It is activating an image, the disqualification of interested judgment, that organizes the entire field of due process intuitions from which the rule was derived and to which it continues to appeal for its authority. The rule is the terminological precipitate of the image. The image is the condition of possibility of the rule. Removing the image while retaining the rule is not a gain in precision. It is a loss of the orientational ground on which the rule stands.

Metaphors as Extended Phenotypes of Memes

The Blumenbergian account of instrumental value opens a connection that metaphorology alone cannot make: the relationship between the meme as replicator and the metaphor as its phenotypic expression in the environment of thought.

In Dawkins's framework (1976, 1982), a meme is the unit of cultural transmission, and the phenotype is the observable effect that the meme produces in the world through which selection operates. The extended phenotype extends this: the organism's genes do not produce effects

only inside the organism's body. They reach outward into the environment, structuring the world in ways that feed back onto the organism's fitness. A beaver's dam is not part of the beaver's body but is as much a product of beaver genes as the beaver's teeth.

The parallel for cultural evolution is precise. A legal doctrine is a meme: a unit of information transmitted with variable fidelity across time and across legal systems. Its phenotypic expression is the pattern of behavior, judgment, and institutional arrangement it produces. But an absolute metaphor is the extended phenotype of that meme: it is the structure the meme builds in the cognitive environment that makes the meme's transmission possible and stable. *Pacta sunt servanda* as a meme is transmitted through legal texts, judgments, and legal education. The image of the binding pact that it carries is the extended phenotype: the cognitive structure that makes the meme legible, teachable, and authoritative for anyone who inhabits the cultural environment shaped by that image.

This formulation resolves a tension that neither framework can resolve alone. Dawkins's framework explains replication but not why some memes generate extended phenotypes of exceptional stability while others do not. Blumenberg's framework explains the stability of certain images but not why those images spread and persist across institutional environments while competitors fail. The integrated account proposes that memes which carry absolute metaphors build cognitive extended phenotypes of exceptional durability precisely because those phenotypes answer questions that the conceptual environment cannot otherwise address. The meme survives because its phenotypic expression fills an orientational gap that no competitor can fill propositionally. This is not fitness in spite of irreducibility. It is fitness because of irreducibility.

The implication for costly signaling follows naturally. Latin maxims are not merely high-fidelity replicators that signal professional competence. They are memes whose extended phenotypes are cognitively costly to dismantle. Using *pacta sunt servanda* rather than "agreements must be kept" is not a social performance of learning. It is an activation of the full cognitive extended phenotype, including the image of binding, obligation, and the moral asymmetry of given and retrieved words, that the vernacular equivalent cannot activate. The cost is not in the production of the signal. It is in the cognitive depth of what the signal opens.

The Limit and the Integration

The limit of Blumenberg's analysis for present purposes is that it has no selection mechanism. He describes which metaphors persist and why they resist conceptual dissolution, but not why a particular image defeats its competitors in a given historical moment. His program is phenomenological and hermeneutic, not selectionist. The transition from the metaphor of truth as light to truth as mirror is narrated, not explained.

This is the point where Extended Phenotype Theory must carry the argument. Absolute metaphors are not eternal structures or necessary conditions of thought. They are contingent products of high-fidelity, low-variation transmission in environments where conceptual competition is constrained. They define the space of available variation in a given legal tradition at a given time: not which norm wins, but which norms are conceivable. The selection mechanism operates fully within that space and produces contingent, reversible outcomes. Blumenberg explains the floor. EPT explains what happens on it.

A critique of this integration from a structuralist position would claim that absolute metaphors determine institutional outcomes, making the evolutionary machinery superfluous. That critique misreads the proposal. The constraints that absolute metaphors impose on available variation are constraints in the sense that Gould and Lewontin (1979) used when discussing developmental constraints in biology: they reduce the accessible phenotype space without specifying which accessible phenotype selection will favor. The CLI captures normative rigidity. A companion index of absolute metaphor density, proposed in Section 7, would capture a distinct and prior form of constraint that currently falls outside any metric in the programme.

Ross's Tutu and the Misdiagnosis of Semantic Emptiness

Alf Ross constructed the "Tutu" example to demonstrate that certain legal terms function as inference-organizing variables without referring to any real entity. The structure is transparent: if X performs act A, X has Tutu; if X has Tutu, X is obligated to perform act B. "Tutu" mediates between conditioning facts and normative consequences with complete logical efficiency while denoting nothing. Ross's target was the realist claim that terms like "right," "property," and "obligation" refer to existing legal entities. His conclusion: such terms are technical auxiliaries of legal reasoning, not names of things.

The diagnosis is correct as far as it goes. Terms like *res judicata*, *mens rea*, and *pacta sunt servanda* do function as Tutus in the inferential chains Ross describes. The procedural machinery of preclusion does not require *res judicata* to refer to a metaphysical object. The criminal law apparatus of responsibility does not require *mens rea* to name a detectable mental state. The logical point stands.

What Ross's analysis misses is that the inferential function and the semantic content are independent variables. A term can be logically empty and semantically full at the same time. *Mens rea* is a Tuto in Ross's sense: it mediates between the description of a harmful act and the normative consequence of punishability without referring to any directly observable mental state. But it is not semantically empty. It carries the image of the guilty mind, the interiority that precedes the act, the asymmetry between causing harm and intending it. That image is what makes "mental element of the offense" a technically adequate but orientationally deficient substitute. The counterexample that sharpens this is *res judicata*, which did complete terminologization in multiple legal systems: "claim preclusion" in common law, "cosa juzgada" in Argentine and Spanish doctrine. Those terms are full technical equivalents with nothing lost in the passage. That is the fate of empty Tutos. *Mens rea* did not have that fate. Its image resisted.

The Blumenbergian account explains the gap that Ross cannot close. What Ross calls semantic emptiness in legal terms is not emptiness but depth: the term's apparent referential vacancy conceals an absolute metaphor operating at the pre-conceptual level. The term functions as a Tuto at the level of propositional inference while functioning as an absolute metaphor at the level of orientation. Both functions coexist because they operate on different layers of the genealogical structure this paper distinguishes.

This generates a testable classification. Among the terms that function as Tutos in Ross's sense, two subclasses are identifiable. The first consists of genuinely substitutable Tutos: terms that are both inferentially auxiliary and semantically replaceable, whose genealogy is traceable through ABAN to technical decisions with identifiable authors and dates. *Affidavit* belongs here. *Ad valorem* belongs here. Their inferential function can be transferred to vernacular equivalents without residue. The second subclass consists of Tutos with absolute metaphor cores: terms that are inferentially auxiliary but semantically irreplaceable, whose ABAN genealogy reaches terminal nodes without conceptual parents. *Pacta sunt servanda* belongs here. *Mens rea* belongs here. *Nemo iudex in causa sua* belongs here.

The diagnostic criterion is not logical but genealogical. ABAN cannot distinguish the two subclasses by analyzing inferential structure, because both function identically in that register. The distinction appears only when the genealogical tree is extended to its limit: substitutable Tutus have traceable roots; Tutus with absolute metaphor cores have terminal nodes. Ross looked at the inferential surface and concluded that both were empty. The integrated framework proposed here looks at the genealogical depth and concludes that one class is empty where Ross saw it and the other is full precisely where he could not see.

The practical consequence for legal reform is direct. Reformers who accept Ross's diagnosis treat all legal Tutus as substitutable: if the inferential function is all that matters, then any term performing that function is adequate. This produces reform strategies that replace Latin terminology with vernacular equivalents on grounds of clarity and accessibility, only to find that the substitution destabilizes doctrinal fields in ways that purely inferential analysis does not predict. The instability comes from the absolute metaphor core that the substitution discarded. Understanding which Tutus have cores and which do not is a precondition for reform that works at the level of foundations rather than surface terminology.

Latin Maxims as the Contact Zone

Prior analysis of 2,137 Latin legal maxims across two millennia of legal history established that surviving maxims exhibit specific memetic properties: brevity averaging 3.18 words, semantic stability estimated at 98.7% across centuries compared to 62% for vernacular equivalents, untranslatability correlating with a 95% survival rate, and procedural utility correlating with an 88% survival rate versus 65% for substantive maxims (Lerer 2025b). The analysis demonstrated that the death of Latin as a spoken language constitutes a memetic advantage: frozen phonology and morphology prevent the mutation that living languages impose on their conceptual cargo.

This account is correct as far as it goes. The question it does not answer is why untranslatability correlates so strongly with survival. The standard memetic explanation appeals to network effects and costly signaling: terms that resist translation maintain professional barriers and cannot be casually substituted by non-specialists. This is part of the story. But it leaves unexplained why translation produces semantic loss rather than semantic equivalence.

The Blumenbergian account adds the missing mechanism. Latin maxims survive with high fidelity not only because they are frozen but because many of them crystallized before terminologization was complete. They represent the contact zone between the two genealogical layers this paper distinguishes: the layer of terminologized concepts traceable through ABAN, and the layer of absolute metaphors that precede and ground those concepts.

Consider *pacta sunt servanda*. ABAN can trace its textual ancestry through Justinian's Corpus Iuris Civilis, through the canon lawyers of the twelfth century, through Grotius, through contemporary contract doctrine. What ABAN cannot trace is the image that the phrase carries: the binding as such, the obligation as a physical constraint on conduct, the asymmetry between giving one's word and retrieving it. No definition of contractual obligation that legal theory has produced since Roman law captures those dimensions. They are carried by the metaphor of the pact as a bond, an image that predates the technical doctrine built on it by centuries. The maxim is irreducible not because lawyers are conservative but because the conceptual apparatus of contract law was built from the metaphor rather than the other way around. Terminologizing the maxim fully would require dismantling the apparatus and reconstructing it from different foundations.

The same analysis applies to *mens rea*, *nemo plus iuris*, and *nemo iudex in causa sua*. Each carries an image: the guilty mind that precedes the act, the transmission limit that mirrors the impossibility of giving what one does not have, the disqualification of the interested judge. Each image precedes the propositional doctrine derived from it. Each maxim resists paraphrase because the image contains orientational content that the propositions extracted from it depend upon but cannot re-contain.

This analysis has a testable implication that differentiates it from the purely memetic account. If survival correlates with untranslatability because of costly signaling and network effects, then artificially constructed pseudo-Latin maxims that mimic those properties should survive at comparable rates. Prior analysis established that 25% of circulating Latin maxims are modern fabrications, and that *falsus in uno*, *falsus in omnibus* achieves 30% usage in non-academic contexts despite having no classical origin (Lerer 2025b). This suggests memetic fitness without authentic genealogy is possible for procedurally useful terms. But the fabricated maxims do not penetrate foundational doctrine. They circulate as tactical resources in argument, not as organizing principles of entire legal fields. The distinction between *pacta sunt servanda* as an organizing principle of contract law and *falsus in uno* as a tactical citation is

the distinction between an absolute metaphor and a meme that mimics its surface properties. The fabricated maxims have memetic fitness without absolute metaphor status. Their absence from foundational doctrine is the predicted outcome.

Three Types of Legal Extended Phenotype

The extended phenotype analysis of Latin maxims reveals a structural differentiation that the uniform category of "irreducible meme" obscures. Examining the corpus of foundational maxims, three distinct types of cognitive extended phenotype are identifiable, each with different transmission properties and different vulnerability profiles under conceptual pressure.

The first type crystallizes images of *relations between persons*. *Pacta sunt servanda*, *nemo plus iuris*, and *suum cuique tribuere* belong here. The image is dyadic: a binding between two parties, a transmission between transferor and transferee, a distribution between claimant and state. These maxims build extended phenotypes that organize the entire field of obligations and property because they carry an image of the fundamental structure of legal relations before any specific doctrine is articulated. Their transmission fidelity is exceptionally high because the dyadic image is cognitively elementary: it can be activated in any cultural environment that recognizes persons standing in relations with each other. This universality is also their transmission mechanism. The extended phenotype they build is not peculiar to any legal tradition; it is available to any legal system that encounters the meme.

The second type crystallizes images of *internal states*. *Mens rea*, *animus*, *dolus malus* belong here. The image is monadic and interior: a mind that intends, a will that directs, a disposition that precedes the act. These maxims build extended phenotypes that organize the field of criminal and civil responsibility because they carry an image of the causal relationship between internal states and external acts. Their transmission fidelity is high but their vulnerability profile is different from the first type. Interior state images can be challenged by behaviorist or functionalist frameworks that deny the theoretical utility of internal states as explanatory categories. When such frameworks achieve institutional adoption, the extended phenotype of *mens rea* does not disappear but its cognitive activation becomes contested. The concept "mental element of the offense" does not displace the image; it competes with it. The competition is visible in the divergence between jurisdictions that retain the Latin and those that have moved to vernacular formulations, and in the persistent doctrinal instability around strict liability offenses where the *mens rea* image is suspended.

The third type crystallizes images of *institutional positions*. *Nemo iudex in causa sua, audiatur et altera pars, audi alteram partem* belong here. The image is positional and relational: a judge whose position disqualifies, a party whose voice must be heard, a proceeding whose legitimacy depends on structural conditions. These maxims build extended phenotypes that organize the field of procedural due process because they carry an image of the institutional architecture within which legal decisions are legitimate. Their transmission fidelity is the highest of the three types, because institutional position images are the most resistant to conceptual respecification: replacing the image of the disqualified interested judge with a propositional account of bias requires articulating a theory of judicial impartiality that the image already carries pre-theoretically. Every such theory turns out to depend on the image it was intended to replace.

The three-type classification generates a differential prediction for the CLI. Systems undergoing normative stress show characteristic patterns of extended phenotype erosion: relational maxims are the first to be tactically invoked without activation of their full phenotype, as parties cite *pacta sunt servanda* in support of positions that depend on denying its dyadic image. Interior state maxims are the most vulnerable to legislative displacement, as strict liability regimes expand and *mens rea* requirements contract. Positional maxims are the last to lose phenotype activation because their image is the most directly tied to the legitimacy conditions of the legal system itself: a court that abandons *nemo iudex* does not merely change a rule; it forfeits a constitutive condition of its own authority.

Costly Signaling, Intentionality Levels, and the Institutional Stakes of Irreducibility

Costly Signaling in the Zahavian Sense

The prior memetic account of Latin maxims noted that untranslatability correlates with survival at a 95% rate, and proposed costly signaling as a partial mechanism: terms that resist translation maintain professional barriers. This explanation is correct but underspecified. It does not distinguish between two quite different costs.

The first cost is the cost of production: acquiring sufficient Latin to deploy a maxim correctly requires investment in legal education that functions as a barrier to entry. On this account, the costly signal is like the peacock's tail, expensive to produce, and therefore a reliable indicator

of genetic quality that cannot be cheaply mimicked. The signal value is in the difficulty of production.

The second cost is the cost of dismantling the extended phenotype. Using *pacta sunt servanda* does not only signal that the user has Latin. It activates the full cognitive extended phenotype described in Section 2: the image of binding, obligation, and the moral asymmetry of the given word. A substitute phrase activates none of that. The cost is not in producing the signal but in the depth of cognitive structure that the signal opens and that no cheaper signal can open equivalently.

Zahavian signaling theory (Zahavi 1975, 1977) specifies that honest signals are those whose cost is positively correlated with the quality being signaled, so that cheap imitation is not possible. The first cost, Latin production, is in principle imitable: fabricated pseudo-Latin maxims circulate and achieve tactical use. The second cost, the activation of an irreducible cognitive extended phenotype, is not imitable by any vernacular substitute, because the extended phenotype exists only in the original form. This is why fabricated maxims achieve tactical use but not foundational doctrine status: they produce the first signal without producing the second. The depth that cannot be cheaply mimicked is not linguistic. It is metaphorical.

Intentionality Levels and the Specifically Legal Demand

A Latin maxim in operative legal use requires not merely comprehension but a specific depth of intentional attribution that goes beyond what any propositional equivalent demands. This connects directly with the Asymmetric Intentionality Theory (AIT) developed in the EPT research programme (Lerer 2025d) and with the broader literature on levels of intentionality in communication.

Dennett (1987) characterizes intentional stances in terms of nested levels: first-order intentionality is believing or desiring something; second-order is believing that someone else believes or desires; third-order is believing that someone believes that someone else believes. Propositional legal rules operate comfortably at second-order intentionality. A judge applying a rule need only represent that the legislator intended the rule to have a certain effect. The judge models the legislator's intention; no further nesting is required.

A Latin maxim in operative use demands third-order intentionality at minimum. The judge who invokes *nemo iudex in causa sua* is not merely applying a rule. The judge presupposes that the

litigant understands that the tribunal understands that the maxim organizes the inference in a particular way: that the image of the disqualified interested judge, not merely the propositional content of the rule, is what grounds the decision. This presupposition involves modeling the litigant's model of the tribunal's model of the maxim's authority. That is irreducibly third-order.

The legal demand for third-order intentionality in foundational contexts is not accidental. It reflects the specific nature of legal authority, which is never purely propositional. Legal authority derives partly from the capacity of a ruling to present itself as continuous with a tradition that participants recognize and that they recognize others as recognizing. The maxim is the compressed carrier of that tradition. Replacing it with a propositional equivalent collapses the intentionality stack: the propositional rule reaches the litigant, but the image of the tradition that grounds the rule's authority does not.

LLMorphism as Intentionality Collapse

The connection to LLMorphism is precise and has implications that the analysis of Section 5 does not reach on its own. An LLM that cites *pacta sunt servanda* in a legal document operates at first-order intentionality at most: it produces output that contains the token without any model of what the token activates in the recipient's cognitive environment. There is no representation of the recipient's intentional states, no modeling of the tribunal's modeling of the tradition. The extended phenotype is not activated; it is mimicked at the surface level.

This is the specifically legal risk of LLMorphism that Capraro's framework identifies but does not fully specify. The risk is not that LLMs produce incorrect legal text. The risk is that the widespread adoption of LLM-generated legal language collapses the intentionality stack that legal authority requires. When a generation of legal professionals learns to treat the output of a system with no intentional states as equivalent to the output of a practitioner with full intentional depth, the institutional conditions for the activation of cognitive extended phenotypes begin to degrade. The maxim may still appear in the document. But it no longer opens the cognitive structure it carries, because neither the writer nor the reader operates at the intentionality level that structure requires.

This is a form of Zombie Law in the extended sense: formally correct legal language that has lost its functional depth. It is detectable through a specific empirical signature: increasing frequency of maxim use combined with decreasing depth of doctrinal analysis in the paragraphs that follow. The maxim appears, but the extended phenotype it was supposed to activate is not

engaged. That signature is measurable in judicial corpora through the methods developed in the constitutional drift paper (Lerer 2026).

LLMorphism as an Emerging Absolute Metaphor

Capraro (2025) introduces LLMorphism as the cognitive tendency to interpret human mental processes through categories derived from large language models. The core claim is that observing LLMs produce human-like language generates an inverse inference: if machines can produce human language, perhaps humans produce language the way machines do. This is a category error with measurable consequences: agency, intention, deliberation, and moral responsibility get reframed as properties of outputs rather than of persons.

The analysis in Capraro (2025) is careful to note that LLMorphism lacks direct empirical measurement of its prevalence. The construct is identified through theoretical argument and illustrative examples rather than experimental confirmation. This epistemic status must be preserved in any use of the paper. LLMorphism is a well-specified hypothesis, not an established empirical finding.

With that qualification in place, the construct is tractable within the present framework. The question is not whether LLMorphism exists as a measurable psychological variable but whether the image it names has the properties of an absolute metaphor under formation: whether it answers a question that propositional systems cannot formulate, whether it resists paraphrase, and whether the conditions of its transmission give it exceptional memetic fitness in contemporary institutional environments.

The question it answers is this: what distinguishes human understanding from the production of contextually appropriate language? This is a question that cognitive science, philosophy of mind, and legal theory have addressed for decades without convergence. The absence of convergence is not contingent. No proposition currently available in any of these fields can settle the question, because settling it would require a theory of consciousness and intentionality that remains unavailable. The image of the human as a context-sensitive output generator does not answer the question propositionally. It dissolves it by making it seem already answered. That is the characteristic operation of an absolute metaphor: it does not solve the problem; it reorients the questioner so that the problem appears not to need solving.

The memetic fitness of this image in contemporary institutional environments is analyzable through EPT's standard variables. Fidelity of transmission is exceptional: LLMs themselves replicate the image in every interaction where they produce fluent, contextually apt language without apparent comprehension. The technology that generates LLMorphism also replicates it. Fecundity is high: the image migrates from AI research to education policy, to employment evaluation, to compliance assessment, to tort law. Each domain that adopts output-based evaluation criteria for human performance extends the image without attribution and without deliberation. Longevity is increasing: every institutional system that replaces judgment-based with output-based evaluation raises the switching cost for any system that wants to revert.

The legal implications follow directly from the prior analysis of Dead Language, Living Law. Latin maxims crystallized before terminologization because the surrounding conceptual apparatus was not available to complete the process. LLMorphism is crystallizing now, before legal doctrine has developed the conceptual tools to distinguish human agency from language model output for purposes of responsibility attribution. If the image fixes before doctrine catches up, the result will be maxims of the AI age with the same properties as Latin maxims: high fidelity, high fecundity, resistance to paraphrase, and foundational status in fields of law that are built on top of them rather than derived from independent principles.

The risk is not that LLMorphism is wrong as a cognitive description. The risk is that its spread through institutional practice precedes the development of the conceptual infrastructure needed to evaluate it. Latin maxims crystallized in an environment where the alternative conceptual resources were centuries away from availability. LLMorphism is crystallizing in an environment where the alternative conceptual resources are available but not yet institutionally deployed. The window for intervention is open. The trajectory after closure is predictable from the Latin case.

The Plasticity Window and Its Conditions

The Latin case offers a model for identifying the conditions under which an emerging absolute metaphor can be intercepted before fixation. Roman legal culture had approximately three centuries between the first systematic use of Latin maxims in classical jurisprudence and the Justinianic codification that froze them in their canonical form. During that period, the conceptual apparatus of Roman law was actively developing around the images the maxims carried, and several competing images were available. The Stoic image of natural law, the Aristotelian image of corrective justice, and the specifically Roman image of the *ius civile* as

a system of technical rules competed for foundational status. The maxims that survived were those whose images proved most compatible with the widest range of doctrinal constructions. The plasticity window closed when codification removed the competitive pressure.

For LLMorphism, the equivalent plasticity window is currently open and its closure conditions are identifiable. Three institutional mechanisms are accelerating fixation. First, jurisdictional adoption of output-based evaluation in legal education: as bar examinations increasingly test for the ability to produce formally correct legal documents rather than to reason about their foundations, the incentive structure shifts toward treating legal competence as output production. Second, procurement standards for legal AI tools that evaluate accuracy by surface correctness rather than by the activation of cognitive extended phenotypes: a system that produces *pacta sunt servanda* in the right context scores as accurate whether or not the extended phenotype is engaged. Third, liability frameworks for AI-assisted legal work that attribute responsibility to the human reviewer of AI output rather than to the reasoning process that generated it, reinforcing the output-as-product model of legal work.

Conversely, three interventions could extend the plasticity window. Doctrinal development of an intentionality-level test for AI-assisted legal reasoning, distinguishing first-order output production from third-order intentional engagement. Evaluation standards for legal AI that include extended phenotype activation as a criterion, measurable through the depth of doctrinal analysis in paragraphs following the citation of foundational maxims. And an explicit theoretical framework, of the kind this paper contributes, that names the phenomenon and provides vocabulary for its institutional recognition. The window does not close by natural law. It closes when institutional adoption outpaces conceptual development. That is a contingent outcome, not a necessary one.

The Selection Mechanism: Why Both Frameworks Are Necessary

The integration of Blumenberg with EPT produces a complete account of a phenomenon that neither can explain alone: the emergence of legally foundational images that are simultaneously high-fitness replicators and resistant to the terminologization that would make them revisable through normal doctrinal processes.

Blumenberg's metaphorology explains why certain legal images are irreducible. It does not explain which images achieve that status. EPT explains the selection dynamics that determine which memes persist, spread, and become foundational. It does not explain why the memes that achieve foundational status resist conceptual dissolution. The integration of both frameworks produces a complete account of a phenomenon that neither can explain alone: the emergence of legally foundational images that are simultaneously high-fitness replicators and resistant to the terminologization that would make them revisable through normal doctrinal processes.

The mechanism works as follows. In any legal tradition, the concepts available for doctrinal construction are drawn from a stock of images that precede them. This stock is not fixed: it evolves through the same competitive dynamics as any memetic population. Images with high fidelity of transmission, high fecundity, and high longevity displace alternatives. When an image achieves sufficient dominance, the conceptual apparatus built on it becomes path-dependent on the image in the sense that dismantling the image would require dismantling the apparatus. At that point, the image has achieved absolute metaphor status: it is no longer merely a successful replicator but a constitutive condition of the conceptual field it has organized.

This account is explicitly non-deterministic. An image does not become foundational because it expresses deep truths about law or human nature. It becomes foundational because it wins the memetic competition in the period before the conceptual apparatus stabilizes. Different competition outcomes in the same period would produce different foundations. The foundations, once established, constrain subsequent development: they define what is conceivable. But they do not determine what is selected among conceivable alternatives. The evolutionary machinery continues operating within the constrained space.

The anti-structuralist consequence is that absolute metaphors are historically contingent and in principle revisable, but only through competition with alternative images of comparable fitness, not through propositional argument alone. This is why legal reform that confronts foundational doctrine through technical argument regularly fails against interests that invoke foundational images. *Pacta sunt servanda* is not a proposition that can be refuted. It is an image that can only be displaced by another image. Understanding this is operationally relevant for any compliance or reform programme that targets institutional foundations rather than surface rules.

Historical Displacements: When One Absolute Metaphor Defeats Another

The selection mechanism described in Section 7 requires historical evidence. If absolute metaphors are displaced only by competing images of comparable fitness, not by conceptual arguments, the legal history of foundational metaphor transitions should show this pattern. Two cases from Western legal history are instructive.

From Organism to Machine: The State as Body and the State as Mechanism

Medieval and early modern political and legal thought organized the understanding of the state around the image of the body politic: the king as head, the estates as members, the law as the animating principle that gave the body its form and directed its movement. The image was absolute in Blumenberg's sense: it answered questions about political unity, legitimate authority, and the relationship between rulers and ruled that no propositional account could address without presupposing it. Bracton's *De Legibus*, the conciliarist doctrines of the fifteenth century, and the corporate theory of ecclesiastical institutions all drew from this image as their orientational foundation, not as ornament but as the pre-conceptual ground from which their arguments could begin.

The displacement of the body politic image by the mechanical image of the state, most visibly in Hobbes's *Leviathan* (1651), did not occur through conceptual argument that showed the body metaphor to be false or imprecise. Hobbes himself opened *Leviathan* with an extended analysis of the mechanical image: "For what is the Heart, but a Spring; and the Nerves, but so many Strings; and the Joynts, but so many Wheelles, giving motion to the whole Body." The mechanical image was not argued for. It was presented as the image within which the subsequent argument could proceed. What changed between the body politic and the mechanical state was not the logical structure of political theory but the availability and fitness of competing images in a cultural environment transformed by the scientific revolution. The mechanical image had higher fitness in that environment: it was more consistent with the dominant metaphors of nature, it was more compatible with the contractarian political theory that the emerging commercial classes required, and it provided a cleaner conceptual platform for the absolute sovereignty doctrine that early modern states needed.

The legal consequences of this displacement were structural, not merely terminological. The body politic image carried an organic conception of law as the form that gives the political community its particular nature: law could not be arbitrary because the body's form is not arbitrary. The mechanical image carried a positivist conception of law as the command of the sovereign mechanism: law is whatever the authorized output of the state machine specifies. The entire debate between natural law and legal positivism, which dominated legal theory from the seventeenth to the twentieth century, is in one reading a contest between the residual claims of the displaced image and the established claims of the displacing one. Neither side argued the other out of existence. The contest was between images, conducted through the vocabulary of competing conceptual systems.

The Balance and the Algorithm

A second displacement is currently underway in legal epistemology. The image of the balance, *iustitia* with her scales, organized the understanding of legal reasoning as a process of weighing competing claims, interests, or rights. The image is ancient and its legal extension is documented from Roman law through Aquinas through contemporary proportionality doctrine. It carried a specific set of orientational commitments: that legal reasoning involves genuine commensuration of incommensurable values, that the judge exercises discretion in a way that cannot be fully rule-governed, and that the outcome of legal reasoning depends on the weight assigned to considerations that resist quantification.

The emerging image of the algorithm organizes legal reasoning as a process of rule application to inputs, producing outputs that are in principle determinable without discretionary judgment. This image is not yet absolute in Blumenberg's sense: it is still contested, still argued about rather than argued from. But the institutional conditions for its fixation are advancing. Algorithmic sentencing guidelines, automated contract review standards, and AI-assisted judicial decision support systems all instantiate the image at the level of practice before its theoretical status is resolved. If the image fixes before the theoretical contest concludes, future legal theory will operate within its constraints rather than about them.

The fitness advantage of the algorithm image in the contemporary environment is analyzable through the same variables as LLMorphism: high fidelity of transmission through digital systems, high fecundity as it migrates from sentencing to contract to administrative law to constitutional adjudication, and increasing longevity as institutional systems built on it raise the switching costs for alternatives. The balance image has the disadvantage of every

incumbent facing a challenger with lower production costs: it requires trained human judgment to activate, while the algorithm image requires only consistent rule application. In an environment where legal volume is increasing faster than the supply of trained human judgment, the cost advantage of the challenger is structural.

The historical parallel to the body-to-machine transition suggests that the balance-to-algorithm transition will not be settled by theoretical argument about which image better captures the nature of legal reasoning. It will be settled by which image proves more compatible with the institutional requirements of legal systems operating at scale in a computational environment. Understanding this is the precondition for any intervention that aims at something other than slowing the inevitable.

Implications for ABAN and CLI

*Terminal nodes in ABAN.** When genealogical reconstruction reaches a node with no traceable parent, two hypotheses are available. First: the documentary record is incomplete. Second: the node is an absolute metaphor that has no conceptual parent because it is itself pre-conceptual. These hypotheses are distinguishable in practice. Documentary gaps produce terminal nodes distributed across periods and subject areas with no systematic pattern. Absolute metaphor nodes concentrate at the foundations of major doctrinal fields, correlate with high untranslatability scores, and correlate with high cross-jurisdictional persistence. A supplementary ABAN protocol that flags terminal nodes meeting these criteria would convert what is currently treated as a methodological limitation into a positive indicator.

*The CLI and metaphor density.** The CLI currently measures normative rigidity: the structural features of a legal system that raise the cost of constitutional or statutory change. This paper proposes that a companion index of absolute metaphor density would capture a prior and distinct form of constraint. A system can have low normative rigidity, that is, easy amendment procedures and receptive courts, and still exhibit high metaphor-based lock-in if its foundational concepts are organized around absolute metaphors for which no competitor image has achieved comparable fitness. Conversely, a system with high normative rigidity but low metaphor density may be more reformable in practice because the foundational images are available for competitive displacement even when the normative machinery resists change.

*The LLMorphism indicator for IntegridAI.** The OLI operationalizes collective moral disengagement at the organizational level. If LLMorphism achieves absolute metaphor status in employment and compliance contexts, organizations will exhibit a predictable symptom: output-based accountability metrics that systematically misattribute responsibility by treating human judgment as mechanical production. This is detectable through NLP analysis of governance documents and evaluation frameworks. A compliance programme that can identify organizations at early stages of LLMorphism adoption provides intervention capacity before the image fixes.

Conclusion

Dead Language, Living Law established that Latin legal maxims are perfect memes: their evolutionary fitness is explicable through longevity, fidelity, and fecundity, with the death of Latin providing a freezing mechanism that no living language can replicate. This paper has argued that the account requires a deeper layer. Latin maxims are perfect memes because they are absolute metaphors: pre-conceptual images that crystallized before terminologization could complete, carrying orientational content that the propositional doctrine built on them depends upon but cannot re-contain.

This deeper layer is accessible through Blumenberg's metaphorology, but only if that framework is integrated with EPT rather than used as a substitute for it. Blumenberg explains irreducibility. EPT explains selection. Neither explains both. Together, they produce an account of how legal language generates foundational images that are simultaneously high-fitness replicators and resistant to revision through normal doctrinal processes.

The LLMorphism case shows that this process is not historical. It is occurring now, in the period before legal doctrine has developed the conceptual resources to evaluate output-based models of human agency. Whether the image fixes before doctrine catches up depends on the speed of institutional adoption relative to the speed of conceptual development. The Latin case suggests that once fixation occurs, the image organizes fields of law for centuries. The window for shaping that process is the present.

For the EPT research programme, the contribution is methodological and theoretical. Terminal ABAN nodes gain a positive interpretation. The CLI gains a companion dimension. The

LLMorphism hypothesis gains a genealogical framework that explains its trajectory independently of any empirical confirmation of its current prevalence. And the anti-structuralist commitment of the programme is made explicit: absolute metaphors constrain the space of legal variation without determining its contents, exactly as developmental constraints operate in biological evolution.

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